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Lawsuit targets excise tax on firearms

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The National Rifle Association and other Second Amendment groups announced a lawsuit Wednesday filed in San Diego Superior Court challenging the constitutionality of a new California law that went into effect Monday imposing an 11 percent excise tax on firearm and ammunition sales.

Lawmakers approved the tax to fund a new Gun Violence Prevention and School Safety Fund aimed at supporting programs focused on prevention, education, research and more. But the gun-rights groups and individuals challenging the new tax said it violates the Constitution because it has no historically similar law and unfairly disfavors the Second Amendment as compared to other rights.

“California effectively seeks the power to destroy the exercise of a constitutional right by singling it out for special taxation,” the lawsuit alleges. “If this tax is permitted, there is nothing stopping California from impos- ing a 50% or even 100% tax on a constitutional right it disfavors whether it be the right to keep and bear arms, the right to free exercise of religion, or any other right.”

The named defendant in the lawsuit is Nicolas Maduros, the director of the California Department of Tax and Fee Administration.

A spokesperson for the department told the Union-Tribune that the agency “does not comment on pending litigation” in a statement Wednesday.

While challenges to California’s strict gun laws are typically filed in federal court, the tax aspect of this law required the firearms-rights groups to file their challenge in state court.

The lawsuit seeks to enjoin the state from enforcing the law and collecting the tax and asks a judge to declare the law unconstitutional.

“California’s firearms excise tax is a blatant and egregious attack on the rights of Californians and a calculated maneuver to dismantle the Second Amendment,” Randy Kozuch, executive director of the NRA Institute for Legislative Action, said in a statement. The lawsuit alleges that plaintiffs Danielle Jaymes, a San Diego County resident, and Joshuah Gerken, an Orange County resident, were forced to pay the 11 percent tax on Monday, the first day that Assembly Bill 28 went into effect. The state Legislature approved the bill in September.

“On July 1, 2024, Ms. Jaymes purchased a handgun and ammunition from (Poway Weapons & Gear) for both self-defense and training purposes,” the lawsuit alleges. “Her receipt listed California’s 11% excise tax as a line item at the bottom, and the typical cost of the firearms and ammunition she purchases had increased by 11%.”

A receipt for the purchase made by Jaymes, a manager

at Poway Weapons & Gear,

showed she paid $57.27 in normal taxes and $82.42 in the new special tax on her purchase of nearly $800.

The suit also claims that Jaymes had been planning to purchase a new Sig Sauer pistol when it becomes available in the next few weeks. “But after realizing that the Sig Sauer purchase would cost 11% more, Ms. Jaymes has decided to defer purchasing it due to the increased cost from the tax,” the lawsuit alleges. “Ms. Jaymes would purchase this

handgun within the coming weeks if it did not cost 11% more.”

The suit alleges that Gerken, a firearms instructor with a license to carry a concealed weapon, paid the new tax when purchasing ammunition Monday at a Big 5 Sporting Goods store in Orange County.

“Mr. Gerken plans to continue regularly purchasing ammunition in the near future but will do so less frequently due to the 11% tax,” the lawsuit alleges.

The new law was authored by Assemblymember Jesse Gabriel, D-Encino, chair of the Legislature’s Gun Violence Prevention Working Group. In a statement at the time the law was passed, Gabriel said the new tax would generate more than $150 million each year “to fund school safety and violence prevention programs, including initiatives to prevent school shootings, bolster firearm investigations, reduce retaliatory violence, and remove guns from domestic abusers.”

Excise taxes have been successfully used for public policy in the past. Studies have shown that heavy taxes on tobacco products are highly effective at controlling tobacco use and improving public health.

But Chuck Michel, president and general counsel for the California Rifle & Pistol Association, one of the plain- tiffs in the suit, said levying a tax on lawful gun owners to fund gun violence prevention made little sense.

“It’s like taxing a prescription drug and using the funds to fight heroin addiction,” Michel told the Union-Tribune. “These are unrelated costs.”

Michel said the tax is an attempt to drive up the costs of purchasing firearms and “pricing people out of the market.” He said the tax will most hurt less wealthy

people who are more likely

to need a firearm for self-defense.

The lawsuit alleges the tax is unconstitutional under the Supreme Court’s

2022 ruling in New York

State Rifle & Pistol Association Inc. v. Bruen. That ruling established that gun laws must be “rooted in the Second Amendment’s text, as informed by history” and must be “consistent with the nation’s historical tradition of firearm regulation.”

The lawsuit alleges that Maduros and the California Department of Tax and Fee Administration “will be unable to present widespread, relevantly-similar analogues from the Founding era to support the tax.”

The Second Amendment Foundation and Firearms Policy Coalition are the other plaintiffs in the case.

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